

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 65

By: Weaver of the Senate

and

Turner of the House

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10 COMMITTEE SUBSTITUTE

11 An Act relating to substance abuse services; defining
12 terms; authorizing the possession, acquisition,
13 distribution, and administration of emergency opioid
14 antagonists and adulterant test strips by any person;
15 providing criminal and civil immunities; providing
16 for codification; providing an effective date; and
17 declaring an emergency.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 2-403 of Title 43A, unless there
21 is created a duplication in numbering, reads as follows:

22 A. As used in this section:

23 1. "Adulterant test strips" means test strips, papers, or other
24 testing devices designed to detect the presence of fentanyl,

1 xylazine, or other substances used to adulterate a controlled
2 substance;

3 2. "Emergency opioid antagonist" means a drug including, but
4 not limited to, naloxone that blocks the effects of opioids and that
5 is approved by the United States Food and Drug Administration for
6 the treatment of an opioid overdose; and

7 3. "Person" means, unless the context otherwise requires, any
8 individual, partnership, association, corporation, limited liability
9 company, governmental entity, tribal entity, public or private
10 institution of postsecondary education, or other legal entity.

11 B. Notwithstanding any provision of law to the contrary, any
12 person may:

13 1. Possess and store emergency opioid antagonists or adulterant
14 test strips;

15 2. Acquire emergency opioid antagonists and adulterant test
16 strips by purchase or donation;

17 3. Distribute or make emergency opioid antagonists and
18 adulterant test strips available to any person to the extent
19 permitted under applicable federal law; and

20 4. Administer an emergency opioid antagonist to any person who
21 the person believes, in good faith, is experiencing an opioid
22 overdose.

23 C. A person shall not be subject to criminal prosecution for
24 possessing, storing, acquiring, distributing, making available, or

1 administering emergency opioid antagonists or adulterant test strips
2 pursuant to this section.

3 D. Any person who, in good faith, distributes, makes available,
4 or administers emergency opioid antagonists or adulterant test
5 strips pursuant to this section shall not be liable for any civil
6 damages as a result of any acts or omissions by such person, except
7 for acts or omissions constituting gross negligence or willful or
8 wanton wrongs in distributing, making available, or administering
9 emergency opioid antagonists or adulterant test strips.

10 SECTION 2. This act shall become effective July 1, 2026.

11 SECTION 3. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

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16 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
17 OVERSIGHT, dated 04/16/2026 - DO PASS, As Amended.
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